

Oroville City Elementary School District Bond Measure

Arguments in support of, or in opposition to, the proposed laws are the opinions of the authors.



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Without increasing current tax rates, to repair and replace leaky roofs and windows; construct facilities for career technical education; upgrade inadequate electrical and air-conditioning systems; make health, safety and security improvements and repair classrooms, restrooms and school facilities, shall Oroville City Elementary School District's measure authorizing $16,000,000 of bonds at legal rates be adopted, with average levies of $16 per $100,000 assessed value (approximately $1,000,00 annually), while bonds are outstanding, citizens' oversight, annual audits, and all money staying local? Bond – YES or Bond – NO

IMPARTIAL ANALYSIS OF MEASURE Q

Measure Q, an Oroville City Elementary School District ("District") general obligation bond measure, seeks voter approval to authorize the District to issue $16 million of bonds at legal rates. The primary purpose of the bonds is to finance school facilities projects as specified in the measure.

Pursuant to Section 18 of Article XVI and Section 1 of Article XIIIA of the California Constitution, this measure will become effective upon the affirmative vote of at least 55% of the qualified electors voting on this measure.

Education Code section 15100 restricts the use of the proceeds from the bonds sale to items such as building school buildings, improving school grounds, supplying school buildings and grounds with equipment, and acquiring real property for school facilities. In addition, proceeds may only be used for the projects listed in the measure. This measure provides that its proceeds will fund projects outlined in the measure (reproduced in the sample ballot pamphlet) that include, but are not limited to: the modernization, renovation, expansion, acquisition, construction/reconstruction, rehabilitation, and/or replacement of school facilities of the District, including the furnishing and equipping of school facilities at all existing sites of the District and all sites that may be acquired by the District in the future. Proceeds may not be used for any other purpose such as teacher salaries and other operating expenses.

If 55% of those who vote on the measure vote "yes," the District will be authorized to issue bonds in the amount of $16 million. Approval of this measure

will authorize a levy on the assessed value of taxable property within the District by an amount needed to pay the principal and interest on the bonds each year that the bonds are outstanding.

The Tax Rate Statement for Measure Q in this sample ballot pamphlet reflects the District's best estimates, based upon currently available data and projections, of the property tax rates required to service the bonds. The best estimate of the tax rate required to be levied to fund the bonds is $16.28 per $100,000 of assessed valuation and the bonds issued pursuant to this measure are not expected to increase the current tax rate in the District. The final fiscal year in which it is anticipated that the tax will be collected is 2059-60. The best estimate of the total debt service, including principal and interest, that would be required to be repaid if all the bonds are issued and sold will be approximately $33,635,000.

The Board of Trustees ("Board") will appoint a citizens' oversight committee to ensure that the bond proceeds are spent for the projects listed in the measure. The Board will also conduct annual, independent performance and financial audits.

If 55% of those voting on this measure do not vote for approval, the measure will fail and the District will not be authorized to issue the bonds.

This measure is placed on the ballot by the governing board of the District.

s/Brad J. Stephens, Butte County Counsel

ARGUMENT IN FAVOR OF MEASURE Q

Vote Yes on Q to repair and improve Oroville City Elementary School District schools **without increasing existing tax rates.**

Some of our school classrooms are over 75 years old and are past due for repairs and upgrades to maintain safety and quality instruction for local students. Because the State continues to underfund our classrooms and facilities, voters must step up to protect the quality of their neighborhood public schools.

Measure Q will give the Oroville City Elementary School District **access to over $11 million in State matching funds** that we would otherwise not qualify for, maximizing the impact of the community's investment in our schools.



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Without increasing existing tax rates, Measure Q will upgrade and renovate schools and fund projects that ensure current and future students have a safe learning environment and receive the college preparation and career training needed for successful futures.

By law, all funds from Measure Q must be spent on repairing and improving Oroville City Elementary School District schools and cannot be taken by the State.

Vote Yes on Q to:

- Replace leaky roofs and windows
- Construct career technical education facilities and after-school enrichment programs
- Update or replace outdated heating, ventilation, and air conditioning systems
- Make health, safety, and security upgrades
- Upgrade inadequate electrical systems, deteriorating plumbing, sewer, and irrigation systems

Measure Q has built-in taxpayer safeguards:

- **Will not increase existing tax rates**
- An independent citizens' oversight committee, annual audits, and a detailed project list ensure funds are spent as promised
- All funds stay local to support OCESD schools
- Funds cannot be spent on administrators' salaries or pensions

Even if you don't have school-age children, **improving local schools is a wise investment** that protects our quality of life and our property values.

Support our local kids and vote YES on Q to support high-quality education in Oroville schools – without increasing taxes!

s/Janet Goodson, Oroville City Council Member
s/ Vince Xiong, OCESD Educator
s/ Betty Pendergraft, OCESD Parent Leader and Employee
s/ Vanessa Hernandez-Felix, Ophir PTO President; Local Business Owner
s/ Charles Tracy, Retired Educator; Local Business Owner



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ARGUMENT AGAINST MEASURE Q

No argument against was filed.

FULL TEXT MEASURE Q
KEY FINDINGS

- The Oroville City Elementary School District (the "District") in Butte County has a strong tradition of providing high-quality education to the students of Oroville.
- Dedicated teachers and staff are committed to providing an environment where all students can learn and achieve to the best of their abilities and encouraging them to become lifelong learners.
- Some District classrooms and school facilities are over 50 years old, and all of the District's facilities need repairs, upgrades, and safety improvements to provide the education that local students deserve.
- The District's maintenance staff works hard to take care of the aging classrooms and school facilities by keeping up with necessary repairs and maintenance, but significant upgrades and capital improvements are needed that are beyond what can be funded by the District's annual budget.
- A school improvement bond measure could enable the District to repair and upgrade school classrooms and facilities for its present and future students.
- A school improvement bond measure will provide funds for essential repairs and upgrades to school roofs, heating and air conditioning systems, plumbing, sewer, and electrical lines, as well as updates to fire safety systems and fire alarms to support our schools.
- Additionally, bond measure will provide funds to replace aging portables with permanent classrooms and provide career technical education (CTE) classrooms and facilities to prepare our students for high school and in-demand jobs here in our community.
- The State of California does not fund many school facility improvements, and the limited state dollars available for facility upgrades typically take years to arrive and require local matching funds that could be provided by a local bond measure.
- A school improvement bond measure could qualify our schools for millions of State matching funds that would otherwise go to other districts.
- This bond measure includes strict accountability, including the appointment of an independent citizens' oversight committee and annual audits to ensure all funds are spent locally as promised.



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BOND AUTHORIZATION

By approval of this measure by at least 55% of the registered voters voting on the measure, the District will be authorized to issue and sell bonds of up to $16,000,000 in aggregate principal amount, at interest rates not to exceed legal limits and to provide financing for the specific types of school facilities projects listed in the Bond Project List included below, subject to all the accountability requirements specified below.

ACCOUNTABILITY REQUIREMENTS

The provisions in this section are specifically included in this measure in order that the voters and taxpayers in the District may be assured that their money will be spent wisely. Expenditures to address specific facilities needs of the District will be in compliance with the requirements of Article XIIIA, Section 1(b)(3), of the State Constitution and the Strict Accountability in Local School Construction Bonds Act of 2000 (codified at Education Code Sections 15264 and following.)

Bonds authorized by this measure may be issued under the provisions of the California Education Code (starting at Section 15100), under the provisions of the California Government Code (starting at Section 53506), or under any other provision of law authorizing the issuance of general obligation bonds by school districts. The bonds may be issued in series by the District, from time to time, and each series of bonds shall mature within the legal limitations set forth in the applicable law under which the bonds are issued.

Evaluation of Needs. The Board of Trustees of the District (the "Board") has identified detailed facilities needs of the District, and has determined which projects to finance from a local bond. The Board hereby certifies that it has evaluated safety, class size reduction, enrollment growth, and information technology needs in developing the Bond Project List described below.

Independent Citizens' Oversight Committee. Following approval of this measure, the Board will establish an independent citizens' oversight committee, under Education Code Sections 15278 and following, to ensure bond proceeds are expended only on the types of school facilities projects listed below. The committee will be established within 60 days of the date when the results of the election appear in the minutes of the Board.

Performance Audits. The Board will conduct annual, independent performance audits to ensure that the bond proceeds have been expended only on the school facilities projects listed below.

Financial Audits. The Board will conduct annual, independent financial audits of the bond proceeds until all of those proceeds have been spent for the school facilities projects listed below.

Government Code Accountability Requirements. As required by Section 53410 of the Government Code, (1) the specific purpose of the bonds is set forth in this Full Text of the Measure, (2) the proceeds from the sale of the bonds will be used only for the purposes specified in this measure, and not for any other purpose, (3) the proceeds of the bonds, when and if issued, will be deposited into a building fund to be held by the Butte County Treasurer, as required by the Education Code, and (4) the Superintendent of the District shall cause an annual report to be filed with the Board of the District not later than January 1 of each year, which report shall contain pertinent information regarding the amount of funds collected and expended, as well as the status of the projects listed in this measure, as required by Sections 53410 and 53411 of the Government Code.

Bonding Capacity. Issuance of each series of bonds authorized by this measure is required to conform with all applicable legal requirements. This includes issuance within applicable bonding capacity limitations, which may include a waiver of bonding capacity granted by the State Board of Trustees, if sought and granted.

NO TEACHER OR ADMINISTRATOR SALARIES

Proceeds from the sale of bonds authorized by this measure shall be used only for the purposes specified in Article XIII A, Section 1(b)(3), specifically the construction, reconstruction, rehabilitation, or replacement of school facilities, including the furnishing and equipping of school facilities, and the acquisition or lease of school facilities, and not for any other purpose, including teacher and administrator salaries and other school operating expenses.

STATE MATCHING FUNDS

The following statement is included in this measure pursuant to Education Code Section 15122.5: Approval of this measure does not guarantee that the proposed projects that are the subject of bonds under this measure will be funded beyond the local revenues generated by this measure. The District's proposal for the projects described below may assume the receipt of matching state funds, which, if available, could be subject to appropriation by the Legislature or approval of a statewide bond measure.

INFORMATION ABOUT ESTIMATES AND PROJECTIONS

Voters are informed that any estimates or projections in the bond measure or

ballot materials, including relating to estimated tax rates, the duration of issued bonds and related tax levies and collections are provided as informational only. Such amounts are estimates and are not maximum amounts or limitations on the terms of the bonds, the tax rate or duration of the tax supporting repayment of issued bonds. Such estimates depend on numerous variables which are subject to variation and change over the term of the District's overall facilities and bond financing plan, including but not limited to the amount of bonds issued and outstanding at any one time, the interest rates applicable to issued bonds, market conditions at the time of sale of the bonds, when bonds mature, timing of project needs and changes in assessed valuations in the District. As such, while such estimates and approximations are provided based on information currently available to the District and its current expectations, such estimates and approximations are not limitations and are not binding upon the District. In addition, the abbreviated and condensed statement of the bond measure presented to voters which is subject to a word count limitation imposed by State law does not limit the scope and complete meaning of the measure provided in this Full Text of Bond Measure and related ballot materials.

The District has examined the fiscal year 2025-26 tax rate for its outstanding bonds, the scheduled amortization of such bonds, and the current assessed valuation in the District. As a result, the District expects that the bonds issued pursuant to this measure will not increase the tax rate supporting the District's general obligations above the fiscal year 2025-26 tax rate, using reasonable assumptions regarding assessed valuation growth, although the final maturity of outstanding bonds will be extended by this measure. Notwithstanding the foregoing, voters are informed that general obligation bonds authorized by this measure are secured by an *ad valorem* tax unlimited as to rate or amount under State law. Although the current expectation is that the cumulative tax rate for bonds will not be increased by this measure, voters are informed that this expectation does not result in a cap or limitation on the tax levies required to amortize bonds authorized hereby. The District cannot anticipate all events that could result in assessed valuation changes including declines which may result in levies during the term of the bonds that are higher than the rate described in this section.

BOND PROJECT LIST

Scope of Projects. Bond proceeds will be expended on the modernization, renovation, expansion, acquisition, construction/reconstruction, rehabilitation, and/or replacement of school facilities of the District, including the furnishing and equipping of school facilities, at all existing sites of the District and all sites

that may be acquired by the District in the future.

School Facility Project List. The items presented on the following list provide the specific types of school facilities projects authorized to be financed with voter-approved bond proceeds. Specific examples included on this list are not intended to limit the types of projects described and authorized by this measure. The following types of projects are authorized by this measure:

- Construct, modernize, renovate, replace and/or expand schools, classrooms, restrooms, multi-purpose rooms, PE, arts, and other facilities, including providing updated furnishings and other equipment
- Construct classrooms, labs and other facilities for career technical education programs to prepare students for high school and in-demand careers
- Repair or replace leaky roofs
- Remove, replace or repair aging portables
- Repair or replace outdated heating, ventilation and air-conditioning systems
- Improve and upgrade technology infrastructure, and IT systems, including classroom learning technology
- Repair or replace plumbing, electrical and sewer systems
- Make health, safety and security improvements, including seismic upgrades and fire safety systems
- Improve walkways, pick-up and drop-off areas and parking lots to improve traffic flow and student safety
- Improve building exteriors, including doors, locking systems, windows and painting
- Make safety and accessibility upgrades including to drinking fountains and playground equipment
- Repair, replace and/or upgrade paved surfaces, turf, grounds, shade structures, and outdoor areas

- Upgrade, repair and/or expand school site parking, roadways, grounds and other infrastructure such as utility systems, including installing exterior lighting, repairing pathways, walkways, access ramps, and make landscaping improvements including irrigation

Incidental Expenses. Each of the bond projects described in this Bond Project List

include the costs of furnishing and equipping such facilities, and all costs which are incidental but directly related to the types of projects described above. Examples of incidental costs include, but are not limited to: costs of design, engineering, architect and other professional services, facilities assessments, inspections, site preparation, utilities, landscaping, interior and exterior painting, bond project construction management, administration and other planning and permitting, legal, accounting and similar costs; independent annual financial and performance audits; a customary construction contingency; abatement, demolition and disposal of existing structures; the costs of interim housing and storage during construction including relocation and construction costs incurred relating to interim facilities; the preparation or restoration of construction, renovation or remodeling; rental or construction of storage facilities and other space on an interim basis for materials and other equipment and furnishings displaced during construction; costs of relocating facilities and equipment as needed in connection with the projects; the acquisition or improvement of interim classrooms and facilities for students, administrators, and school functions, including portable classrooms and other modular facilities; federal and state-mandated safety upgrades; addressing unforeseen conditions revealed by construction/modernization and other necessary improvements required to comply with existing building codes, including the Field Act; access requirements of the Americans with Disabilities Act; and costs of the election; bond issuance costs; and project administration during the duration of such projects, as permitted by law.

Furnishing and Equipping. Each project is assumed to include its share of furniture, fixtures, equipment, architectural, engineering, and similar planning costs, program/project management, staff training expenses and a customary contingency for unforeseen design and construction costs. In addition to the listed projects stated above, the list also includes the acquisition of a variety of instructional, maintenance and operational equipment, including the reduction or retirement of outstanding lease obligations and interim funding incurred to advance fund projects from the list; installation of signage and fencing; payment of the costs of preparation of all facility planning, facility studies, assessment reviews, facility master plan preparation and updates, environmental studies (including environmental investigation, remediation and monitoring), design and construction documentation, and temporary housing of dislocated District activities caused by construction projects. The upgrading of technology infrastructure includes, but is not limited to, computers, projectors, portable interface devices, servers, switches, routers, modules, sound projection systems,

printers, digital white boards, document projectors, telephone system, call manager and network security/firewall, wireless technology systems and other miscellaneous equipment.

Alterations to Scope; Acquisition of Real Property. The scope and nature of any of the specific projects described above may be altered by the District as required by conditions that may arise during the course of design and construction. In the event that a modernization or renovation project is more economical for or otherwise determined by the Board to be in the best interests of the District to be undertaken as new construction, this bond measure authorizes said new construction including land acquisition, relocation and construction at a new or alternative site, and/or demolition and reconstruction and/or repurposing on the original site, including an expanded site, and all costs relating thereto. For any project involving rehabilitation or renovation of a building or the major portion of a building, the District shall be authorized to proceed with new construction instead, if the Board determines that replacement and new construction is more economically practical than rehabilitation and renovation, considering the building's age, condition, expected remaining life, and other relevant factors.
In addition, this measure authorizes the acquisition of real property, including necessary rights of ways or other real property interests required to expand District facilities, to provide access to school or other District facilities, or to provide additional school or related facilities.

Interim Financing Included; Joint Use Projects Authorized. Authorized projects include paying and/or prepaying interim or previously obtained financing for the types of projects included on the Bond Project List, such as bond anticipation notes, and includes prepayment of lease payments to acquire title to facilities and/or equipment previously financed. Projects may also be undertaken on a joint use basis with other public entities.

Bond Project List Not in Order of Priority; Board Determines Prioritization. Approval of this bond measure does not guarantee that the proposed projects will be funded beyond the local revenues generated by the measure. The District's capital needs currently exceed the amount of bonds the voters are being asked to authorize. The order in which particular projects are listed is not intended to suggest priority for funding or completion, and itemization of projects in the list above does not guarantee that all such projects will be undertaken. Project priorities will be determined by the Board. The ability of the District to undertake and complete the listed projects is subject to numerous variables including the adequacy and availability of sufficient funding sources.



The District is unable to anticipate all unforeseen circumstances which may prevent some of the projects listed above from being undertaken or completed.

Interpretation. The terms of this bond measure and the words used in the Bond Project List shall be interpreted broadly to effect the purpose of providing broad and clear authority for the officers and employees of the District to provide for the school facilities projects the District proposes to finance with the proceeds of the sale of bonds authorized by this proposition within the authority provided by law, including Article XIIIA, Section 1(b)(3) of the California Constitution, Education Code Section 15000 *et seq.* and the Strict Accountability in Local School Construction Bonds Act of 2000. Words used in the Bond Project List such as repair, improve, upgrade, expand, modernize, renovate, and reconfigure are used to describe school facilities projects in plain English but are not intended to expand the nature of such projects beyond what is authorized by law. As such, in accordance with legal requirements, the Bond Project List does not authorize, and shall not be interpreted to authorize, expending proceeds of the sale of bonds authorized by this proposition for current maintenance, operation or repairs.

Severability. The Board hereby declares, and the voters by approving this Bond Measure concur, that every section and part of this bond proposition has independent value, and the Board and the voters would have adopted each provision hereof regardless of every other provision hereof. Upon approval of this measure by the voters, should any part be found by a court of competent jurisdiction to be invalid for any reason, all remaining parts hereof shall remain in full force and effect to the fullest extent allowed by law, and to this end the provisions of this bond measure are severable.

TAX INFORMATION STATEMENT MEASURE Q

An election will be held in the Oroville City Elementary School District (the "District") on November 3, 2026, to authorize the sale of up to $16,000,000 in general obligation bonds. The following information is submitted in compliance with Sections 9400-9404 of the Elections Code of the State of California. Such information is based upon the best estimates and projections presently available from official sources, upon experience within the District, and other demonstrable factors.



Based upon the foregoing and projections of the District's assessed valuation, the following information is provided:

1. The best estimate of the average annual tax rate that would be required to fund this bond issue over the entire duration of the bond debt service, based on estimated assessed valuations available at the time of filing of this statement, is $16.28 per $100,000 of assessed valuation. It is currently expected that the tax will be collected until fiscal year 2059-60.
2. The best estimate of the highest tax rate that would be required to fund this bond issue, based on estimated assessed valuations available at the time of filing this statement, is $16.28 per $100,000 of assessed valuation. This rate is projected to apply in each fiscal year that bonds are outstanding.
3. The best estimate of total debt service, including principal and interest, that would be required to be repaid if all the bonds are issued and sold will be approximately $33,635,000.

The above projections and estimates relate only to bonds issued pursuant to this bond measure. District voters have previously approved bond measures pursuant to which the District has issued bonds that are still outstanding, in part. Due to the scheduled amortization of outstanding bonds that will occur prior to the time the first levy is expected pursuant to this measure, the District expects that such levy will not increase the cumulative fiscal year 2025-26 tax rate of $16.28 per $100,000. The District does not currently expect such tax rate to be increased as a result of the issuance of bonds pursuant to this bond measure. Voters are informed that the estimates and projections set forth above shall not restrict the tax imposed in accordance with this bond measure. Such estimates, projections and approximations are not intended to be additional restrictions on the District's bond program and bond issuances and, other than the total principal amount of bonds authorized to be issued by this bond measure, shall not represent legal maximums or additional limitations on bond issuance.

These estimates are based on projections derived from information obtained from official sources, and are based on the assessed value (not market value) of taxable property on the County's official tax rolls. In addition, taxpayers eligible for a property tax exemption, such as the homeowner's exemption, will be taxed at a lower effective tax rate than described above. Property owners should consult their own property tax bills and tax advisors to determine their property's assessed value and any applicable tax exemptions. The attention of all voters is directed to the fact that the foregoing information is based upon

projections and estimates only, which amounts are not maximum amounts and durations and are not binding upon the District. The actual debt service, tax rates and the years in which they will apply may vary depending on the timing of bond sales, the par amount of bonds sold at each sale and actual increases in assessed valuations. The timing of the bond sales and the amount of bonds sold at any given time will be determined by the District based on the need for project funds and other considerations. Actual assessed valuations will depend upon the amount and value of taxable property within the District as determined by the County Assessor in the annual assessment and the equalization process.

s/Spencer Holtom, Superintendent - Oroville City Elementary School District